

07 NCAC 04R .0203 is proposed for readoption with substantive changes as follows:

07 NCAC 04R .0203 ARCHAEOLOGICAL REVIEW SUBMISSIONS FOR REVIEW

~~(a) Projects are reviewed for archaeological concerns whenever ground disturbing activity is involved. Examples of ground disturbance include, but are not limited to, construction of dikes, clearing and grubbing of forests, subsurface alterations around standing structures, borrow pits, trenching for water and sewer lines, utility line construction or improvements requiring excavation; construction, widening or improvements of highways; and airport expansions, bridge replacements, housing developments, boat basins and channels, and placement of fill or spoil dirt.~~

~~(b) Evaluation of potential effects on archaeological resources is made by staff archaeologists, taking into consideration known site locations, historical maps and documents, results of previous surveys in the area or similar areas, past and present land uses, the area's topography and hydrology, predictive models of archaeological site locations, and type and extent of proposed land modification activities.~~

~~(c) After staff evaluation, recommendations are made by the SHPO within the state or federally mandated deadline for review comments:~~

~~(1) Clearance. If it is determined that the project area is unlikely to contain significant archaeological remains, the written response is no comment.~~

~~(2) Archaeological Survey Recommended. If it is determined that the project area is likely to contain significant archaeological sites and there is no record of systematic archaeological surveys in the project area, an archaeological survey is recommended prior to any ground disturbing activity to determine the presence and significance of archaeological sites that may be damaged or destroyed by the proposed action.~~

~~(3) Testing Recommended. If a known site is within the project boundaries, archaeological testing is recommended to determine its significance.~~

~~(4) Survey and Testing Recommended. If a project area contains known sites but has not been completely surveyed, testing of the sites and a survey of the remaining project area are recommended.~~

~~(5) Avoidance. If archaeological sites listed in or determined eligible for inclusion in the National Register of Historic Places are located in the project area, avoidance by adjustment of the project plans is recommended. New project locations are subject to the review process.~~

~~(d) All archaeological reports submitted to the SHPO in compliance with federal and state historic preservation legislation are reviewed by the Archaeology Branch using standards established by the Department of Cultural Resources outlined in "Guidelines for the Preparation of Reports of Archaeological Surveys and Evaluations". The guidelines:~~

~~(1) ensure compliance with pertinent legislation;~~

~~(2) ensure fulfillment of contract sponsor needs with regard to archaeology; and~~

~~(3) permit the effective and speedy review of compliance surveys and evaluation reports. Reports submitted for review which do not satisfy the requirements defined in the guidelines are considered incomplete and returned for revision and resubmission. Copies of the guidelines are available from the Archaeology and Historic Preservation Section.~~

~~(e) When an archaeological survey report indicates that a site within a project's area of environmental impact is eligible for inclusion in the National Register of Historic Places, the procedures outlined at 36 CFR 800.5 -6 (regulations of the Advisory Council on Historic Preservation) are followed.~~

(a) Proposed undertakings submitted for review to the HPO shall include:

(1) a description of the project location;

(2) a description of the actions(s) proposed;

(3) the applicant's name, address, telephone number, and email address, if available;

(4) a map indicating the project's location, including named or numbered roads;

(5) the project area size in acres; and

(6) photographs of any buildings 50 years old or older within the area of potential effects.

(b) Proposed undertakings submitted for review shall be submitted in one of the following methods:

(1) by mail addressed to the HPO, Attention Environmental Review Coordinator, 4617 Mail Service Center, Raleigh, NC 27601;

(2) by internal State mail to the HPO, Attention Environmental Review Coordinator, 4617 Mail Service Center; or

(3) by email to environmental.review@ncdcr.gov.

(c) All undertakings submitted for review shall be reviewed by the HPO and OSA as staff of the SHPO for their effect on submerged cultural resources as well as historically, architecturally, or archaeologically significant structures, sites districts, or objects. When federally-involved undertakings are reviewed, the HPO and the OSA act as the staff of the SHPO. When State-involved undertakings are reviewed, the HPO and the OSA act as the staff of the North Carolina Historical Commission.

(d) The OSA shall review all archaeological reports, including documentary research and archaeological investigations, submitted to the SHPO for review in compliance with federal and State historic preservation law by employing the Secretary of the Interior's Standards and Guidelines for Archeological Documentation, available at https://www.nps.gov/history/local-law/arch_stnds_0.htm, and the Abandoned Shipwreck Act Guidelines, available at <https://www.nps.gov/archeology/submerged/intro.htm>.

(e) The HPO shall issue a project-specific response within 30 days of receipt of the submission.

History Note: Authority G.S. 121-4(13); 121-8; 121-9; 121-12(a); 143B-62; 16 U.S.C. 470; 54 U.S.C. 302301; 302303; 36 C.F.R. 800.